

		Defendants are ORDERED to file and serve the cross-complaint within 5 days. Defendants to give notice.
5	Galstyan vs. Mercedes-Benz USA, LLC 30-2026-01565539-CU-PL-CJC	Motion to Compel Arbitration and Stay Proceedings Defendant Mercedes-Benz USA, LLC's (MBUSA) Motion to Compel Arbitration and Stay Proceedings is GRANTED. Plaintiff's request for judicial notice is DENIED. MBUSA's request for judicial notice is GRANTED as to Exhibits 1.1 and 2-5 (Evid. Code, § 452, subd. (c)) and otherwise DENIED. MBUSA moves to compel arbitration pursuant to a "Motor Vehicle Lease Agreement" between Plaintiff identified as the Lessee and dealership House of Imports in Buena Park as Lessor (Lease). (Newman Decl., ¶ 3, Ex. B.) Plaintiff does not dispute the existence of the Lease. None of Plaintiff's claims against MBUSA seek to enforce any contractual term or any express or implied warranty contained in the Lease. Thus, Plaintiff's claims "are not intimately founded in or intertwined with the sales contracts," and equitable estoppel does not apply. (See <i>Ford Motor Warranty Cases</i> (2025) 17 Cal.5th 1122, 1126, 1134-1135.) The arbitration provision expressly identifies MBUSA as a third party beneficiary (Newman Decl., Ex. B at p. 4), so MBUSA may enforce the arbitration provision as a third party beneficiary. The Lease provides any dispute which arises out of or relates to the lease or any resulting transaction or relationship arising out of this lease, including any such relationship with third parties who do not sign this contract, will be resolved by arbitration. (Newman Decl., ¶ 3, Ex. B at p. 4.) As Plaintiff does not demonstrate the arbitration provision cannot be interpreted to cover her claims, the Court finds the Lease covers Plaintiff's claims. "Both procedural unconscionability and substantive unconscionability must be shown, but 'they need not be present in the same degree' and are evaluated on 'a sliding scale.'" (<i>Pinnacle Museum Tower Assn. v. Pinnacle</i>

Market Development (US), LLC (2012) 55 Cal.4th 223, 246-247 [citations omitted].)

Procedural unconscionability

While adhesive contracts offered on a “take-it-or-leave-it” basis typically contain some aspect of procedural unconscionability, the degree of procedural unconscionability of an adhesion agreement will be low absent evidence of any other indication of oppression or surprise. (*Serpa v. California Surety Investigations, Inc.* (2013) 215 Cal.App.4th 695, 704.)

Plaintiff contends the Lease is procedurally unconscionable as it is a preprinted contract of adhesion, drafted by the lessor presented to Plaintiff on a take-it or-leave-it basis. Plaintiff also contends the arbitration provision appears on page four of a ten-page form, buried mid-sentence within a single unbolded paragraph, and is not set off by heading or separate signature or initial line.

Plaintiff does not contend, however, she was given insufficient time to read the Lease or precluded from consulting with counsel or asking questions regarding the Lease. Nor does Plaintiff contend the Lease was particularly verbose, illegible, or complex.

Moreover, the arbitration provision is set off by a separate header in a black bar running across the page that states “Important Arbitration Disclosure.” Additionally, page 6 of the Lease states in a boxed section in all caps, “NOTICE TO LESSEE: (1) DO NOT SIGN THIS LEASE BEFORE YOU READ IT . . .” It further states directly above the signature lines, “By signing below, you acknowledge that: . . . You have received and read all 10 pages of this lease carefully and agree to all of its terms, INCLUDING THE IMPORTANT ARBITRATION DISCLOSURES ON PAGES 4 AND 5.”

(Newman Decl., ¶ 3, Ex. B at p. 6 [emphasis in original].)

“Reasonable diligence requires the reading of a contract before signing it. A party cannot use [her] own lack of diligence to avoid an arbitration agreement.” (*Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, 1674 [citation omitted].)

The Court finds a low degree of procedural unconscionability.

Substantive unconscionability

		The Court further finds the Lease is not substantively unconscionable. Plaintiff contends “the delegation clause is unconscionable and unenforceable” and “directs this challenge to the delegation clause itself.” (Opp. at 10:19-20.) As such, any claim of unconscionability must be specific to the delegation clause itself. (<i>Tiri v. Lucky Chances, Inc.</i> (2014) 226 Cal.App.4th 231, 247-248 [citing <i>Rent-A-Center, West, Inc. v. Jackson</i> (2010) 561 U.S. 63, 73].) The cost-allocation terms are not unconscionable as it permits Plaintiff to request a reduction or waiver of fees directly from the arbitrator or that a Third Party Beneficiary voluntarily pay an additional share of fees. As discussed above, MBUSA is explicitly identified as a Third Party Beneficiary. The forum-selection term is not unconscionable as neither Plaintiff nor MBUSA have veto power over the choice of forum expressly agreed upon by the parties, the American Arbitration Association. Rather, the arbitration provision provides Plaintiff with an additional opportunity to choose another organization if MBUSA agrees. Finally, while Plaintiff appears to contend the class action waiver is invalid and voids the entire arbitration section, Plaintiff does not demonstrate how this claim of unconscionability is specific to the delegation clause itself. The matter is STAYED pending arbitration. Arbitration Status Review set for 9/23/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior. MBUSA to give notice.
6	Jones vs. Uber Technologies, Inc. 30-2025-01456712-CU-PA-CJC	Motion to Vacate Court Order to Compel Arbitration and Lift Stay Plaintiff, Seagen Jones’s motion to vacate order compelling arbitration and lift stay is DENIED. The “motion to vacate” is a disguised and untimely motion for reconsideration. The order is not void and therefore not subject to Code of Civil Procedure section 473, subdivision (d). The court declines to act under Code of Civil Procedure section 128, subdivision (a)(8). Clerk to give notice.